9:00 6	23CV422452	*Ricardo Enrique-Daniel, et al.* *v.* *Estate of Patricia Basquez, et al.*	**Order on Plaintiff's Motion that the Truth of All Specified Facts in the Requests for Admission, Set One, be deemed Admitted by Defendant, and for Sanctions** *See* Line 6 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 7	25CV461206	*Beverly Ann Land* *v.* *Ford Motor Company, et al.*	**Order on Plaintiff's Motion for Leave to File First Amended Complaint** As the moving party has notified the Court that it withdraws this motion, this motion is hereby OFF CALENDAR. **SO ORDERED.**
9:00 8	25CV461390	*Shashank Singh* *v.* *Hyundai Motor America, et al.*	**Order on Defendant's Motion to Compel Arbitration and Stay Civil Action** *See* Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal order.
9:00 9			
9:00 10			
9:00 11			
9:00 12			
9:00 13			

9:00 14			
9:00 15			

Line 1

Case Name: *Estate of Raul Braganza Rivero, et al. v. BMW of North America d/b/a BMW Motorrad, et al.*

Case No.: 21CV381377

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Bayerische Motoren Werke AG ("BMW AG") demurs to the Complaint filed by the Estate of Raul Braganza Rivero, Carla Gardner, Angelica Rivero, and Raphael Rivero (collectively, the "Rivero Plaintiffs") because the Complaint, and each cause of action alleged therein, is time barred as to any allegations against BMW AG. Notice of Demurrer (the "Demurrer") at 1:27-2:2 (filed: April 6, 2026).

The Demurrer came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On February 23, 2019, Raul Braganza Rivero (Decedent) purchased a new 2019 BMW R1250GSW, vehicle identification number WB10J53OXKZF77624 (the "SUBJECT MOTORCYCLE"), from a dealer located at 1990 W. San Carlos St., San Jose, CA 95128. (Complaint ¶ 9)

A month later, while driving the Motorcycle, the front wheel suddenly failed causing Mr. Rivero's crash. Mr. Rivero was rushed to a nearby hospital but was pronounced dead on arrival. (Complaint ¶¶ 11, 12)

BMW brand motorcycles, including the Subject Motorcycle, have had a known problem with insufficient spoke tension that has caused other catastrophic wheel failure crashes. (Complaint ¶¶ 13, 14) BMW issued an international service campaign regarding the spoke detachment problem but did not issue a recall before Decedent's crash. Nor did BMW warn Decedent of the potential wheel failure. (Complaint ¶ 15)

Plaintiffs filed the Complaint in this action on March 26, 2021, alleging causes of action for (1) negligence, (2) products liability – failure to warn, (3) products liability – design defect, (4) products liability - manufacturing defect, (5) products liability – breach of warranty, and (6) wrongful death.

II. Legal Standard

"The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain." (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by "[t]he party against whom complaint has been filed" to object to the legal sufficiency of the pleading as whole, or to any "cause of action" stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50(a).)

"A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 213-214.) In ruling on demurrers, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 743, 751.) Evidentiary facts found in exhibits attached to the Complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

Under California law, even if a demurrer is sustained, leave to amend the Complaint is routinely granted. "Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) "Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not." (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Judicial Notice

BMW AG requests judicial notice of the following:

- Copy of the Complaint filed on March 26, 2021. For the reason explained below, this Request is Granted in Part.

- Copy of the amendment to the Complaint for fictitious name filed on April 9, 2025. For the reason explained below, this Request is Granted in Part.

- Copy of proof of service of summons and Complaint on BMW AG. For the reason explained below, this Request is Granted in Part.

- Code of Federal Regulations, Title 49, Subtitle B, Chapter V, Part567, Section 567.4: Requirements for manufacturers of motor vehicles. For the reason explained below, this Request is Denied.

- NHTSA Vehicle Identification Number Decoder, VIN WB10J530XKZF77624, https://vpic.nhtsa.dot.gov/decoder/VinDecoder?VIN=WB10J530XKZF77624&ModelYear= (last visited May 26, 2026). For the reason explained below, this

Request is Denied.

Under Evidence Code § 452, the *existence* of court records relevant to the arguments raised in the pending motion is subject to judicial notice. However, the Court cannot take judicial notice of the *truth* of factual and hearsay statements contained in these documents. So for the documents listed above where the Court Grants the Request in Part, the Court takes judicial notice of the existence of these documents but not of the truth of fact and hearsay statements in these documents.

The Court Denies judicial notice of the documents from NHTSA Vehicle Identification Number Decoder and Code of Federal Regulations listed above because the Court rules that these documents are not relevant to this pending Demurrer.

IV. Analysis of the Demurrer

BMW AG argues that Plaintiff's claims against it are time barred because:

(1) BMW AG was added to the Complaint on April 9, 2025, well past the two-year statutory limitation for an action for injury or death, which lapsed on March 26, 2021;

(2) Plaintiffs failed to identify and serve BMW AG within three years from the commencement of the action in violation of Code. Civ. Proc. § 583.210;

(3) Plaintiffs have failed to bring their claims against BMW AG to trial within five years from the commencement of the action in violation of Code. Civ. Proc. § 583.310.

The Court will now address and resolve those arguments in turn.

A. Plaintiff's claims are not barred by the two-year statute of limitation.

The crux of BMW AG's argument is that Plaintiffs feigned ignorance of its identity, its role in manufacturing the Motorcycle, and the facts giving rise to a claim against it so that they can wrongly substitute BMW AG for a fictitiously named defendant. BMW AG emphasizes that Plaintiffs were aware of its manufacturing role and identity as early as fifteen months prior to initiating this action when they gained possession of the Subject Motorcycle and had ample opportunity to inspect and see a certification label affixed to its suspension fork identifying BMW AG as the manufacturer. This label was again noted on March 7, 2022, when the parties jointly inspected the Subject Motorcycle with their experts. (Motion pp. 9:21-10:20) BMW AG submits a photograph of this label as exhibit B attachment to the declaration of Jeffrey Stoltz.

BMW AG argues that aside from this affixed label, Plaintiffs could have performed a basic internet search for the manufacturer of the Motorcycle to learn from sources such as Wikipedia that BMW Motorrad is the motorcycle brand of the German automotive manufacturer, BMW AG. (Motion 10:21-27) But Plaintiffs waited until April 9, 2025, to identify and add BMW AG to the action. BMW AG contends that this delay and feigned ignorance undermine Plaintiffs' Doe amendment under Code. Civ. Proc. 474 and prohibit Plaintiffs from utilizing equitable estoppel and the relation back doctrine to circumvent the statutory deadline.

Code. Civ. Proc. §474, the fictitious name statute, addresses when a claimant may bring a Doe amendment. Section 474 states, in relevant part: "When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint . . . and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly . . . ." C.C.P. § 474. In other words, "[s]ection 474 allows a plaintiff who is ignorant of a defendant's identity to designate the defendant in a complaint by a fictitious name (typically, as a 'Doe'), and to amend the pleading to state the defendant's true name when the plaintiff subsequently discovers it." (*McClatchy v. Coblentz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371.) "If the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed." (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176; internal citation omitted)

Section 474 relation-back doctrine applies when plaintiff is actually ignorant of the defendant's identity even if that ignorance is the result of the plaintiff's negligence. (*Woo, supra,* 75 Cal.App.4th at p. 177) "Our Supreme Court blessed negligent ignorance in *Irving v. Carpentier* (1886) 70 Cal. 23, 26, 11 P. 391, and that remains the law today." (*Hahn v. New York Air Brake LLC* (2022) 77 Cal.App.5th 895, 900.) "The rule makes sense. If a reasonable diligence standard governed *section 474*, plaintiffs would be incentivized to routinely name any and all persons who might conceivably have some connection with the suit at the outset." (*Ibid.*)

Ignorance of the facts giving rise to a cause of action is the alternate ignorance required by section 474 and the pivotal question *is* whether Plaintiffs knew facts not whether Plaintiffs knew/believe that they had a claim against the Defendant based on those facts. (See, *General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 594.) "[T]he plaintiff does not relinquish her rights under *section 474* simply because she has a suspicion of wrongdoing arising from one or more facts she does know." (*Id.* at p. 595.) "*[S]ection 474* does not impose upon the plaintiff a duty to go in search of facts she does not actually have at the time she files her original pleading." (*Id.* at p. 596.) "[A]n amended pleading, however, will not relate back unless the original complaint set forth or attempted to set forth some cause of action against fictitiously named defendants." (*Winding Creek v. McGlashan* (1996) 44 Cal.App.4th 933, 941.) "It is not enough, of course, simply to name "Doe" defendants. Rather, the complaint must allege that they were responsible in some way for the acts complained of." (*Ibid.* internal citation omitted)

Here, the Complaint sufficiently alleges fictitiously named defendants to be substituted upon discovery of their identities. Plaintiffs naming ten Doe Defendants in their Complaint, allege they were ignorant of the true names of these defendants. These fictitiously named defendants were responsible in some manner in causing and/or contributing to the harms Plaintiffs and the Decedent suffered from (Complaint ¶ 8) Plaintiffs further assert their first, second, fifth, and sixth causes of action against these ten Doe defendants by naming them under each applicable claim. As such, these allegations at the pleading stage do satisfy the initial requirement of section 474.

The next step is determining Plaintiffs' actual ignorance. Contrary to BMW AG's arguments, its identified facts, i.e. the certification label affixed to the Motorcycle and the Wikipedia article, do not conclusively establish Plaintiffs were not genuinely ignorant of BMW AG's identity at the time they filed their initial Complaint. As noted above, Plaintiffs had no duty to search for facts to resolve section 474 issues when they filed their Complaint. Furthermore, simply having access to the Motorcycle and/or to Wikipedia articles does not mean Plaintiffs saw and read the certification label or the article.

More importantly, even if evidence exists that Plaintiffs inspected the Subject Motorcycle, saw the affixed label to the suspension fork, and read the Wikipedia article well prior to filing their Complaint, it would be improper for the Court to consider such extrinsic evidence *at the pleading stage* because a demurrer challenges *only* defects on the face of the pleadings or matters judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Accordingly, Defendant's Demurrer on this ground is OVERRULED.

B. Plaintiff's claims are not barred by the three-year statute of limitation.

BMW AG next argues that even if the Doe amendment relates back to the original filing date of the Complaint, the claims against it remain time-barred because Plaintiffs failed to identify and serve BMW AG within three years of the commencement of the action in violation of Code. Civ. Proc. § 583.210.

Code. Civ. Proc. § 583.210(a) states, "[t]he summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant." "[A]n action is commenced at the time the complaint is filed." (Code Civ. Proc. § 583.210(a).) The specific purpose behind § 583.210 is to assure that defendants receive prompt notice of the action. (*Davis v. Allstate Ins. Co.* (1989) 217 Cal.App.3d 1229, 1232, internal citation omitted) In computing the three years for service of a summons and Complaint, Code. Civ. Proc. § 583.240(d) excludes any time in which the prosecution of the action was stayed or delayed because service was impossible, impracticable, or futile due to causes beyond the plaintiff's control. "Failure to discover relevant facts or evidence is not a cause beyond the plaintiff's control for purposes of this subdivision." (Code. Civ. Proc. § 583.240(d).)

The requirement that a plaintiff serve the Summons and Complaint within three years and the relation-back doctrine applicable to fictitiously named defendants are independent concepts. Therefore, even where the filing of an Amended Complaint on a

Doe defendant relates back to the filing of an original Complaint, the plaintiff must nonetheless identify and serve a Doe defendant with a summons and Complaint within three years of the commencement of the action.(*Higgins v. Superior Court* (App. 4 Dist. 2017) 15 Cal.App.5th 973, 982.)

Therefore, Plaintiffs were required to identify and serve BMW AG no later than March 26, 2024. BMW AG can utilize a demurrer where the dates in the Complaint or judicially noticeable documents demonstrate the cause of action is barred by the applicable statute of limitation. (See, *Vaca v. Wachovia Mortg. Corp.* (2011) 198 Cal.App.4th 737, 746.)

But on the face of the Complaint there are no factual allegations establishing the date BMW AG was served with the Summons and Complaint. Nor can the Court judicially notice the factual and hearsay statements in a proof of service regarding the date service was effectuated upon BMW AG. In resolving a Demurrer, a Court "cannot take judicial notice of the proper interpretation of a document submitted in support of the demurrer." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 115.) The truth of a document's contents will not be considered unless it is a judgment, statement of decision, or order. (*C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1103.)

Accordingly, BMW AG's Demurrer on this ground is OVERRULED.

C. Plaintiff's claims are not barred by the five-year statute of limitation.

BMW AG next argues that even if the Doe amendment relates back to the original filing date of the Complaint, the claims against it remain time-barred because Plaintiffs failed to bring this action to trial in violation of Code. Civ. Proc. § 583.310.

Code Civ. Proc., § 583.360(a), provides that "an action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this action." The timeframe is provided by Code Civ. Proc., § 583.310, which states an action must be brought to trial within five years after it commences against the defendant. An action is commenced by filing a Complaint with the court (Code Civ. Proc., §411.10.) In computing the time within which an action must be brought to trial under this article, there shall be excluded the time during which any of the following conditions existed: (a) [t]he jurisdiction of the court to try the action was suspended; (b) [p]rosecution or trial of the action was stayed or enjoined; (c) [b]ringing the action to trial, for any other reason, was impossible, impracticable, or futile. (Code Civ. Proc., § 583.340.)

Here, five years have passed since Plaintiffs commenced their action on March 26, 2021. But Plaintiffs contend that BMW AG is estopped from asserting the statutory limitation because throughout the litigation and within its recent motion to quash service of summons, BMW NA intentionally obscured and mislead Plaintiffs to believe BMW AG was a division of BMW NA and not a separate legal entity. Yet in its Demurrer, BMW AG argues that Plaintiffs had a separate opportunity to bring BMW AG into the action when they participated in joint inspection of the Motorcycle. (Opposition 9:14-10:6, 12:5-13:14) Equitable estoppel comes into play only *after* the limitations period has run and addresses the circumstances in which a party will be estopped from asserting the statute of limitations as a defense to an admittedly untimely action because his/her conduct has induced another into forbearing suit within the applicable limitations period.

So equitable estoppel is wholly independent of the limitations period itself and takes its life from the equitable principle that no man may profit from his own wrongdoing in a court of justice. (See, *Lantzy v. Centex Homes* (2003) 31 Cal.4th 363, 383) Here, Plaintiffs do not contend BMW AG engaged in or assisted in any misleading acts to obscure its identity and/or role in manufacturing the Subject Motorcycle, for which they should be estopped from asserting the statutory limitation as a defense. Plaintiffs are improperly invoking the equitable estoppel doctrine against BMW AG for the alleged wrongdoings and misleading acts of BMW NA.

But whether BMW AG and/or BMW NA intentionally mislead Plaintiffs and obscured the identity of BMW AG and its role in manufacturing the Motorcycle to the point that bringing the action to trial was impracticable require *factual findings* that cannot be made let alone resolved at the pleading stage in a Demurrer.

Accordingly, BMW AG's Demurrer on this ground is OVERRULED.

V. Conclusion & Order

BMW AG's Demurrer to the Complaint is OVERRULED in all respects.

SO ORDERED.

Date: June 3, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Wells Fargo Bank, N.A. v. John S. Campbell*

Case No.: 24CV449202

See Order above. (As the moving party has notified the Court that it withdraws this motion, this motion is hereby OFF CALENDAR).

Line 3

Case Name: *Capital One, N.A. v. Sarahi Gomez*

Case No.: 25CV459110

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Capital One, N.A. ("Plaintiff") moves under Code of Civil Procedure Section 438 for entry of Judgment on the Pleadings per the Complaint in the amount set forth in the Complaint plus costs in favor of Plaintiff and against Defendant Sarahi Gomez ("Defendant") on the ground that the Complaint states facts sufficient to constitute a cause of action and the Answer does not state facts sufficient to constitute any defense. Notice of Motion (the "Motion") at 1:23-28 (filed: March 2, 2026).

The Motion came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On February 18, 2025, Plaintiff filed a Complaint with a cause of action for breach of contract against Defendant for damages in the amount of $4,161.56. Complaint at ¶¶ 8-10 (filed Feb. 18, 2025). Having reviewed the Complaint, the Court finds that it *does* state facts sufficient to constitute a cause of action for breach of contract by Plaintiff against Defendant.

Defendant filed an Answer on March 21, 2025, which does not deny any allegation or claim in the Complaint. Answer (filed March 31, 2025). Having reviewed the Answer, the Court finds that it *does not* state facts sufficient to constitute any defense to the Complaint.

Code of Civil Procedure Section 438(a) authorizes a Plaintiff to bring this Motion for Judgment on the Pleadings where, as here, "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." C.C.P. § 438(a).

Here, as the Court has found that (1) the Complaint states facts sufficient to constitute a cause of action for breach of contract against Defendant for damages in the amount of $4,161.56, and (2) Defendant's Answer does *not* state facts sufficient to constitute any defense to the Complaint, Plaintiff's Motion under Section 438(a) is **GRANTED.**

More specifically, as the Court reads Defendant's Answer to admit that she owes the debt claimed by the Complaint, there is no reasonable possibility that this defective pleading (that fails to state facts sufficient to constitute any defense) could be cured by amendment. Accordingly, the Motion is **GRANTED WITHOUT LEAVE TO AMEND.**

Defendant does not argue otherwise. Indeed, Defendant has not opposed the Motion at all, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).)

Given this Order Granting Plaintiff's Motion without leave to amend, Plaintiff is entitled to Judgment now in the amount of damages set forth in the Complaint of $4,161.56, plus Plaintiff's costs incurred for bringing this Motion (as set forth in the accompanying memorandum of costs) in the amount of $358.61 (which equals the $295.00 filing fee plus a $73.61 service of process fee). Hence, Judgment is entered now in favor of Plaintiff and against Defendant for the total amount of $4,520.17 (which equals $4,161.56 in damages plus $358.61 in costs).

Conclusion and Order

For the reasons set forth above, Plaintiff's Motion for Judgment on the pleadings in the amount of $4,161.56 set forth in the Complaint plus costs in the amount of $358.61 for a total amount of $4,520.17 in favor of Plaintiff Capital One, N.A. and against Defendant Sarahi Gomez is **GRANTED WITHOUT LEAVE TO AMEND.**

SO ORDERED.

Date: June 3, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Judgment

Plaintiff's Motion for Judgment on the pleadings, for damages of $4,161.56 plus costs of $358.61 for a total sum of $4,520.17 in favor of Plaintiff and against Defendant, came regularly for a hearing by the Court on June 3, 2026, on notice duly given. After reviewing all the papers and giving counsel for all parties the opportunity to be heard, the Court **GRANTS THE MOTION WITHOUT LEAVE TO AMEND.**

ACCORDINGLY, IT IS SO ORDERED, ADJUDGED, AND DECREED THAT: Plaintiff Capital One, N.A. have and recover now from Defendant Sarahi Gomez a **Total Judgment in the amount of $4,520.17**, which equals damages of $4,161.56 plus costs of $358.61.

Date: June 3, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 4

Case Name: *Ricardo Enrique-Daniel, et al. v. Estate of Patricia Basquez, et al.*

Case No.: 23CV422452

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Jauna Garcia Casas ("Plaintiff") moves under Code of Civil Procedure Sections 2023.010 *et seq.* and 2030.290 *et seq.* to compel Defendant Estate of Patricia Basquez ("Defendant") to provide verified responses to Form Interrogatories, Set One, which were served on Defendant on April 24, 2025, and for sanctions in the amount of $1,710.00. Notice of Motion (the "Motion") at 2:6-27 (filed: Oct. 7, 2025).

The Motion came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of the Motion is straightforward.

On April 24, 2025, Plaintiff served Defendant with Form Interrogatories, Set One. Declaration of attorney Roberto Dominguez Quiroga In Support of Motion (the "Dominguez Decl.") at ¶ 8 & Ex. 1 thereto.

Code of Civil Procedure Section 2030.250(a) requires that "[t]he party to whom the interrogatories are directed *shall* sign the response under oath unless the response contains only objections." C.C.P. § 2030.250(a) (emphasis added). Defendant "Estate of Patricia Basquez's Responses To Form Interrogatories, Set One,"[1] which Defendant's lawyer Claudia Lozano signed and served on Plaintiff on June 23. 2025, contain both answers and objections. So under Section 2030.250(a), these Responses must be verified by the party—Defendant Estate of Patricia Basquez. *See Food 4 Less Supermarkets, Inc. v. Sup. Ct. (Fletcher)*(1995) 40 Cal. App. 4th 651, 657 (where answers and objections intermixed, the portion containing fact-specific responses must be verified).

But, despite repeated requests from Plaintiff's counsel, Defendant never provided a verification for these Responses. Dominguez Decl. at ¶13. Moreover, a review of the meet-and-confer emails between counsel on this point shows that Defendant's lawyer Claudia Lozano and her paralegal Bertha Arroyo knew that a verification for these Responses was required, repeatedly promised to provide that required verification, but never provided one. *See* Dominguez Decl., Ex. 2, July 17, 2025 email from Bertha Arroyo to Plaintiff's counsel Roberto Dominguez Quiroga, cc'ing defense lawyer Claudia Lozano, providing amended responses to form interrogatories and promising: "Please note, verifications will follow"; August 20, 2025 email from Claudia Lozano to Roberto

[1] Hereinafter, the "Responses."

Dominguez Quiroga, replying to Dominguez's August 20, 2025 question on when verifications are coming with the promise that they would be provided within a few days: "Give us till Friday, August 22nd, to provide."

This failure by Defendant to provide a verification to these Responses is a serious and sanctionable discovery violation because where, as here, a verification is required: "an unverified response is ineffective; *it is the equivalent of no response at all*." California Practice Guide: Civil Procedure Before Trial at ¶ 8:1113 (emphasis added) (2002 The Rutter Group) (*citing Appleton v. Supr. Ct. (Cook)* (1988) 206 Cal. App. 3d 632, 636.

In Opposition, attorney Claudia Lozano filed a Declaration with incredible excuses that the Court respectfully rejects. Its excuses are internally inconsistent and rejected by the Court. For several years after this 2023 case was filed, including on all pleadings and on the very Responses at issue in this Motion, attorney Lozano has identified herself as the "Attorney for Defendant, Estate of Patricia Basquez." *See*, e.g., Dominguez Decl. Ex. 3. (Defendant's Responses to Form Interrogatories, Set One, signed by "Claudia Lozano, Esq., Attorney for Defendant Estate of Patricia Basquez."). But now in her Declaration, attorney Lozano suddenly claims after years representing the Estate in this action that she has been told by some other lawyer that "there is no Estate of Patricia Basquez and no one that is legally authorized to sign verifications or any documentation on her behalf." Declaration of Claudia Lozano, Esq. at ¶ 5. But that cannot be true because attorney Lozano has been signing and filing documents in this Court on behalf of the Estate of Patricia Basquez for many years. The Court does not believe and does not find that attorney Lozano has been doing so illegally and without authority for years—or else the Court would have no choice but to report attorney Lozano to the State Bar of California for serious disciplinary violations of having without any agency authority represented in open court a non-existent client for years. That's not what happened, that's not the truth.

What actually happened here is that the brother of decedent Patricia Basquez, who attorney Lozano long believed "was authorized to verify said discovery responses" refused to sign the verification—as if he had that choice—because he "wanted a guarantee of no personal exposure." Declaration of Claudia Lozano, Esq. at ¶ 4.

So the Court rejects as incredible and unbelievable in the extreme the newfangled excuse that the Estate of Patricia Basquez does not exist and there is no one authorized to sign on its behalf *as completely inconsistent and in conflict with the words and actions of attorney Lozano in this case for years—which are imputed to the Estate of Patricia Basquez as attorney Lozano has acted as the Estate's authorized agent in this case for years.*

The Court finds that the Motion is well supported by the law and by the facts as set forth in the Supporting Dominguez Declaration. And the Court rejects the Opposing Lozano Declaration. Accordingly, the Motion is **GRANTED** as follows. The Court **ORDERS** that **Defendant Estate of Patricia Basquez within 30 days from today will provide a signed verification for its Responses to the Form**

Interrogatories, Set One.[2]

Yet in an abundance of fairness and flexibility to give Defendant a straightforward way to comply with this Order to provide a verification within 30 days from today, the Court will broadly read Code of Civil Procedure Section 2030.250(b) to *allow* Defendant's attorney Claudia Lozano to sign this verification on behalf of the Estate of Patricia Basquez, provided that this verification expressly states pursuant to Section 2030.250(b) that:

1. Claudia Lozano as the signer is the authorized agent of Defendant Estate of Patricia Basquez to sign this verification for these Responses; and

2. Defendant Estate of Patricia Basquez waives any lawyer-client privilege and any protection for work protection during any subsequent discovery from attorney Claudia Lozano concerning the identity of the sources of the information contained in these Responses.

C.C.P. § 2030.250(b). To be clear, the Court is not requiring attorney Lozano to sign the verification, but rather giving the attorney Lozana the ability to do so under Section 2030.250(b).

Regarding Plaintiff's request for a monetary sanction now, the Court finds that Defendant while advised by its attorney Lozano committed a "misuse of the discovery process" under Section 2023.010(d): by failing to provide the required verification, Defendant failed to respond at all to the Form Interrogatories. And because Defendant and Defendant's attorney Lozano violated Section 2023.010(d), the Court has authority and discretion to impose a reasonable monetary sanction against them under Section 2023.030(a): "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). But how much *is* reasonable for this particular discovery Motion is within the Court's broad discretion.

Here, for attorneys' fees Plaintiff requests $1,650.00, which equals 3.0 hours at a billable rate of $550.00 per hour. Dominguez Decl. at ¶¶18-19. For costs, Plaintiff requests the $60.00 filing fee for this Motion. *Id.* at ¶16. In light of the relevant market, the Court finds that the billable rate sought of $550.00 is reasonable. But this Motion did *not* reasonably take 3.0 hours. All Plaintiff had to do to win it is point out that (a) Plaintiff served the Form Interrogatories, Set One, on Defendant (it did); (b) Defendant is required by California law to provide verified responses (it is); and (c) Defendant never provided a verification (it never did). The Court finds that reasonably should have taken 1.0 hour

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[2] Lest there be any doubt in the mind of Defendant or Defendant's attorney Lozano, this is not optional; this is an Order the violation of which may result if further monetary sanctions against Defendant and Defendant's attorney Lozano, as well as non-monetary sanctions such as issue, evidentiary, and terminating sanctions.

total to draft and argue. As Defendant's opposing Declaration is nonsense and not credible at all, the Court is not going to award Plaintiff any time for reviewing or replying to that. But the Court will award Plaintiff as a reasonable cost for bringing this motion the $60.00 filing fee.

Hence, for a monetary sanction, the Court awards Plaintiff a **total of $610.00**, which equals reasonable attorneys' fees of $550.00 (= 1.0 hours x $550.00 per hour) plus reasonable costs of $60.00 for *this* Motion. The Court further Orders that Defendant and Defendant's attorney Claudia Lozano are jointly and severally responsible for paying Plaintiff this monetary sanction of $610.00 within 30 days from today. [3]

Conclusion and Order

Plaintiff's Motion is **GRANTED.** Specifically the Court ORDERS that:

1. Within 30 days from today, Defendant Estate of Patricia Basquez will provide to Plaintiff Juana Garcia Casas a signed verification for its Responses to the Form Interrogatories, Set One; and

2. Within 30 days from today, Defendant Estate of Patricia Basquez and Defendant's attorney Claudia Lozano will pay Plaintiff Juana Garcia Casas a monetary sanction of $610.00 total for Plaintiff's reasonable attorneys' fees and costs for the Motion.

Moreover, Defendant Estate of Patricia Basquez and Defendant's attorney Claudia Lozano are put on **NOTICE** that failure to comply with this Order within 30 days from today may result in further escalating monetary sanctions against them, plus nonmonetary sanctions including issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: June 3, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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[3] This monetary sanction of $610.00 that the Court now awards for this Motion to Compel Plaintiff to Provide a Verified Response to Form Interrogatories is *separate and distinct from* any other monetary sanctions that the Court awards against Defendant and attorney Lozano in other Orders for other discovery motions. Simply put, Defendant and attorney Lozano must pay them all.

Line 5

Case Name: *Ricardo Enrique-Daniel, et al. v. Estate of Patricia Basquez, et al.*

Case No.: 23CV422452

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Jauna Garcia Casas ("Plaintiff") moves under Code of Civil Procedure Sections 2023.010 *et seq.* and 2031.290 *et seq.* to compel Defendant Estate of Patricia Basquez ("Defendant") to provide verified responses to Requests for Production of Documents, Set One ("RFPs"), which were served on Defendant on April 24, 2025, and for sanctions in the amount of $2,122.50. Notice of Motion (the "Motion") at 2:6-27 (filed: Oct. 7, 2025).

The Motion came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of the Motion is straightforward.

On April 24, 2025, Plaintiff served Defendant with the RFPs. Declaration of attorney Roberto Dominguez Quiroga In Support of Motion (the "Dominguez Decl.") at ¶ 8 & Ex. 1 thereto.

Code of Civil Procedure Section 2031.250(a) requires that "[t]he party to whom the demand for inspection, copying, testing, or sampling is directed *shall* sign the response under oath unless the response contains only objections." C.C.P. § 2031.250(a) (emphasis added). Defendant "Estate of Patricia Basquez's Responses To Requests For Production, Set One,"[4] which Defendant's lawyer Claudia Lozano signed and served on Plaintiff on June 23. 2025, contain both answers and objections. So under Section 2031.250(a), these Responses must be verified by the party—Defendant Estate of Patricia Basquez. *See Food 4 Less Supermarkets, Inc. v. Sup. Ct. (Fletcher)*(1995) 40 Cal. App. 4th 651, 657 (where answers and objections intermixed, the portion containing fact-specific responses must be verified).

But, despite repeated requests from Plaintiff's counsel, Defendant never provided a verification for these Responses. Dominguez Decl. at ¶13. Moreover, a review of the meet-and-confer emails between counsel on this point shows that Defendant's lawyer Claudia Lozano and her paralegal Bertha Arroyo knew that a verification for these Responses was required, repeatedly promised to provide that required verification, but

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[4] Hereinafter, the "Responses."

never provided one. *See* Dominguez Decl., Ex. 2, July 17, 2025 email from Bertha Arroyo to Plaintiff's counsel Roberto Dominguez Quiroga, cc'ing defense lawyer Claudia Lozano, providing amended responses to discovery requests and promising: "Please note, verifications will follow"; August 20, 2025 email from Claudia Lozano to Roberto Dominguez Quiroga, replying to Dominguez's August 20, 2025 question on when verifications are coming with the promise that they would be provided within a few days: "Give us till Friday, August 22nd, to provide."

This failure by Defendant to provide a verification to these Responses is a serious and sanctionable discovery violation because where, as here, a verification is required: "an unverified response is ineffective; *it is the equivalent of no response at all*." California Practice Guide: Civil Procedure Before Trial at ¶ 8:1113 (emphasis added) (2002 The Rutter Group) (*citing Appleton v. Supr. Ct. (Cook)* (1988) 206 Cal. App. 3d 632, 636.

In Opposition, attorney Claudia Lozano filed a Declaration with incredible excuses that the Court respectfully rejects. Its excuses are internally inconsistent and rejected by the Court. For several years after this 2023 case was filed, including on all pleadings and on the very Responses at issue in this Motion, attorney Lozano has identified herself as the "Attorney for Defendant, Estate of Patricia Basquez." *See*, e.g., Dominguez Decl. Ex. 3. (Defendant's Responses to the RFPs, signed by "Claudia Lozano, Esq., Attorney for Defendant Estate of Patricia Basquez."). But now in her Declaration, attorney Lozano suddenly claims after years representing the Estate in this action that she has been told by some other lawyer that "there is no Estate of Patricia Basquez and no one that is legally authorized to sign verifications or any documentation on her behalf." Declaration of Claudia Lozano, Esq. at ¶ 5. But that cannot be true because attorney Lozano has been signing and filing documents in this Court on behalf of the Estate of Patricia Basquez for many years. The Court does not believe and does not find that attorney Lozano has been doing so illegally and without authority for years—or else the Court would have no choice but to report attorney Lozano to the State Bar of California for serious disciplinary violations of having without any agency authority represented in open court a non-existent client for years. That's not what happened, that's not the truth.

What actually happened here is that the brother of decedent Patricia Basquez, who attorney Lozano long believed "was authorized to verify said discovery responses" refused to sign the verification—as if he had that choice—because he "wanted a guarantee of no personal exposure." Declaration of Claudia Lozano, Esq. at ¶ 4.

So the Court rejects as incredible and unbelievable in the extreme the newfangled excuse that the Estate of Patricia Basquez does not exist and there is no one authorized to sign on its behalf *as completely inconsistent and in conflict with the words and actions of attorney Lozano in this case for years—which are imputed to the Estate of Patricia Basquez as attorney Lozano has acted as the Estate's authorized agent in this case for years.*

The Court finds that the Motion is well supported by the law and by the facts as set forth in the Supporting Dominguez Declaration. And the Court rejects the Opposing Lozano Declaration. Accordingly, the Motion is **GRANTED** as follows. The Court

ORDERS that **Defendant Estate of Patricia Basquez within 30 days from today will provide a signed verification for its Responses to the RFPs.**[5]

Yet in an abundance of fairness and flexibility to give Defendant a straightforward way to comply with this Order to provide a verification within 30 days from today, the Court will broadly read Code of Civil Procedure Section 2031.250(b) to *allow* Defendant's attorney Claudia Lozano to sign this verification on behalf of the Estate of Patricia Basquez, provided that this verification expressly states pursuant to Section 2031.250(b) that:

1. Claudia Lozano as the signer is the authorized agent of Defendant Estate of Patricia Basquez to sign this verification for these Responses; and

2. Defendant Estate of Patricia Basquez waives any lawyer-client privilege and any protection for work protection during any subsequent discovery from attorney Claudia Lozano concerning the identity of the sources of the information contained in these Responses.

C.C.P. § 2031.250(b). To be clear, the Court is not requiring attorney Lozano to sign the verification, but rather giving the attorney Lozana the ability to do so under Section 2031.250(b).

Regarding Plaintiff's request for a monetary sanction now, the Court finds that Defendant while advised by its attorney Lozano committed a "misuse of the discovery process" under Section 2023.010(d): by failing to provide the required verification, Defendant failed to respond at all to the RFPs. And because Defendant and Defendant's attorney Lozano violated Section 2023.010(d), the Court has authority and discretion to impose a reasonable monetary sanction against them under Section 2023.030(a): "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). But how much *is* reasonable for this particular discovery Motion is within the Court's broad discretion.

Here, for attorneys' fees Plaintiff requests $2,062.50, which equals 3.75 hours at a billable rate of $550.00 per hour. Dominguez Decl. at ¶¶18-19. For costs, Plaintiff requests the $60.00 filing fee for this Motion. *Id.* at ¶16. In light of the relevant market, the Court finds that the billable rate sought of $550.00 is reasonable. But this Motion did *not* reasonably take 3.75 hours. All Plaintiff had to do to win it is point out that (a) Plaintiff served the RFPs, on Defendant (it did); (b) Defendant is required by California law to provide verified responses (it is); and (c) Defendant never provided a verification

[5] Lest there be any doubt in the mind of Defendant or Defendant's attorney Lozano, this is not optional; this is an Order the violation of which may result if further monetary sanctions against Defendant and Defendant's attorney Lozano, as well as non-monetary sanctions such as issue, evidentiary, and terminating sanctions.

(it never did). The Court finds that reasonably should have taken 1.0 hour total to draft and argue. As Defendant's opposing Declaration is nonsense and not credible at all, the Court is not going to award Plaintiff any time for reviewing or replying to that. But the Court will award Plaintiff as a reasonable cost for bringing this motion the $60.00 filing fee.

Hence, for a monetary sanction, the Court awards Plaintiff a **total of $610.00**, which equals reasonable attorneys' fees of $550.00 (= 1.0 hours x $550.00 per hour) plus reasonable costs of $60.00 for *this* Motion. The Court further Orders that Defendant and Defendant's attorney Claudia Lozano are jointly and severally responsible for paying Plaintiff this monetary sanction of $610.00 within 30 days from today. [6]

Conclusion and Order

Plaintiff's Motion is **GRANTED.** Specifically the Court ORDERS that:

1. Within 30 days from today, Defendant Estate of Patricia Basquez will provide to Plaintiff Juana Garcia Casas a signed verification for its Responses to the RFPs; and

2. Within 30 days from today, Defendant Estate of Patricia Basquez and Defendant's attorney Claudia Lozano will pay Plaintiff Juana Garcia Casas a monetary sanction of $610.00 total for Plaintiff's reasonable attorneys' fees and costs for the Motion.

Moreover, Defendant Estate of Patricia Basquez and Defendant's attorney Claudia Lozano are put on **NOTICE** that failure to comply with this Order within 30 days from today may result in further escalating monetary sanctions against them, plus nonmonetary sanctions including issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: June 3, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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[6] This monetary sanction of $610.00 that the Court now awards for this Motion to Compel Plaintiff to Provide a Verified Response to the RFPs is *separate and distinct from* any other monetary sanctions that the Court awards against Defendant and attorney Lozano in other Orders for other discovery motions. Simply put, Defendant and attorney Lozano must pay them all.

Line 6

Case Name: *Ricardo Enrique-Daniel, et al. v. Estate of Patricia Basquez, et al.*

Case No.: 23CV422452

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Jauna Garcia Casas ("Plaintiff") moves under Code of Civil Procedure Sections 2033,280 and 2033.010 *et al.* that the truth of all specified facts in the Requests for Admission, Nos. 1-24, Set One ("RFAs") propounded by Plaintiff on Defendant Estate of Patricia Basquez ("Defendant") on April 24, 2025, be deemed admitted by Defendant. Notice of Motion (the "Motion") at 2:6-10 (filed Oct. 7, 2025). The Motion is made on the ground that Defendant never provided a verified response to the RFAs. *Id.* at 2:11-14. Plaintiff further seeks sanctions in the amount of $1,985.00. *Id.* at 2:22-24.

The Motion came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of the Motion is straightforward.

On April 24, 2025, Plaintiff served Defendant with the RFAs. Declaration of attorney Roberto Dominguez Quiroga In Support of Motion (the "Dominguez Decl.") at ¶ 8 & Ex. 1 thereto.

Code of Civil Procedure Section 2033.240(a) requires that "[t]he party to whom the requests for admission are directed *shall* sign the response under oath unless the response contains only objections." C.C.P. § 2033.240(a) (emphasis added). Defendant "Estate of Patricia Basquez's Responses To Requests For Admission, Set One,"[7] which Defendant's lawyer Claudia Lozano signed and served on Plaintiff on June 23. 2025, contain both answers and objections. So under Section 2033.240(a), these Responses must be verified by the party—Defendant Estate of Patricia Basquez. *See Food 4 Less Supermarkets, Inc. v. Sup. Ct. (Fletcher)*(1995) 40 Cal. App. 4th 651, 657 (where answers and objections intermixed, the portion containing fact-specific responses must be verified).

But, despite repeated requests from Plaintiff's counsel, Defendant never provided a verification for these Responses. Dominguez Decl. at ¶12. Moreover, a review of the meet-and-confer emails between counsel on this point shows that Defendant's lawyer Claudia Lozano and her paralegal Bertha Arroyo knew that a verification for these Responses was required, repeatedly promised to provide that required verification, but

[7] Hereinafter, the "Responses."

never provided one. *See* Dominguez Decl., Ex. 2, July 17, 2025 email from Bertha Arroyo to Plaintiff's counsel Roberto Dominguez Quiroga, cc'ing defense lawyer Claudia Lozano, providing amended responses to discovery requests and promising: "Please note, verifications will follow"; August 20, 2025 email from Claudia Lozano to Roberto Dominguez Quiroga, replying to Dominguez's August 20, 2025 question on when verifications are coming with the promise that they would be provided within a few days: "Give us till Friday, August 22nd, to provide."

This failure by Defendant to provide a verification to these Responses is a serious and sanctionable discovery violation because where, as here, a verification is required: "an unverified response is ineffective; *it is the equivalent of no response at all*." California Practice Guide: Civil Procedure Before Trial at ¶ 8:1113 (emphasis added) (2002 The Rutter Group) (*citing Appleton v. Supr. Ct. (Cook)* (1988) 206 Cal. App. 3d 632, 636.

And because Defendant thereby failed to respond to the RFAs at all, Plaintiff now properly moves under Code of Civil Procedure Section 2033.280 for an Order deeming admitted by Defendant the truth of each matter specified in the RFAs. C.C.P. § 2033.280(b); Pl. Memorandum of Points & Authorities In Support of Motion at 5:22-7:26 (invoking C.C.P. § 2033.280(b)).

In Opposition, attorney Claudia Lozano filed a Declaration with incredible excuses that the Court respectfully rejects. Its excuses are internally inconsistent and rejected by the Court. For several years after this 2023 case was filed, including on all pleadings and on the very Responses at issue in this Motion, attorney Lozano has identified herself as the "Attorney for Defendant, Estate of Patricia Basquez." *See*, e.g., Dominguez Decl. Ex. 3. (Defendant's Responses to the RFAs, signed by "Claudia Lozano, Esq., Attorney for Defendant Estate of Patricia Basquez."). But now in her Declaration, attorney Lozano suddenly claims after years representing the Estate in this action that she has been told by some other lawyer that "there is no Estate of Patricia Basquez and no one that is legally authorized to sign verifications or any documentation on her behalf." Declaration of Claudia Lozano, Esq. at ¶ 5. But that cannot be true because attorney Lozano has been signing and filing documents in this Court on behalf of the Estate of Patricia Basquez for many years. The Court does not believe and does not find that attorney Lozano has been doing so illegally and without authority for years—or else the Court would have no choice but to report attorney Lozano to the State Bar of California for serious disciplinary violations of having without any agency authority represented in open court a non-existent client for years. That's not what happened, that's not the truth.

What actually happened here is that the brother of decedent Patricia Basquez, who attorney Lozano long believed "was authorized to verify said discovery responses" refused to sign the verification—as if he had that choice—because he "wanted a guarantee of no personal exposure." Declaration of Claudia Lozano, Esq. at ¶ 4.

So the Court rejects as incredible and unbelievable in the extreme the newfangled excuse that the Estate of Patricia Basquez does not exist and there is no one authorized to sign on its behalf *as completely inconsistent and in conflict with the words and actions of attorney Lozano in this case for years—which are imputed to the Estate of Patricia*

Basquez as attorney Lozano has acted as the Estate's authorized agent in this case for years.

The Court finds that the Motion is well supported by the law and by the facts as set forth in the Supporting Dominguez Declaration. And the Court rejects the Opposing Lozano Declaration. Accordingly, the Motion is **GRANTED** as follows. Specifically, it is **ORDERED** that the truth of all specified facts in the Requests for Admission, Nos. 1-24, Set One, served on Defendant Estate of Patricia Basquez on April 24, 2025, is deemed admitted by Defendant Estate of Patricia Basquez.

Regarding Plaintiff's request for a monetary sanction now, the Court finds that Defendant while advised by its attorney Lozano committed a "misuse of the discovery process" under Section 2023.010(d): by failing to provide the required verification, Defendant failed to respond at all to the RFAs. And because Defendant and Defendant's attorney Lozano violated Section 2023.010(d), the Court has authority and discretion to impose a reasonable monetary sanction against them under Section 2023.030(a): "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). But how much *is* reasonable for this particular discovery Motion is within the Court's broad discretion.

Here, for attorneys' fees Plaintiff requests $1,925.00, which equals 3.5 hours at a billable rate of $550.00 per hour. Dominguez Decl. at ¶¶16-17. For costs, Plaintiff requests the $60.00 filing fee for this Motion. *Id.* at ¶15. In light of the relevant market, the Court finds that the billable rate sought of $550.00 is reasonable. But this Motion did *not* reasonably take 3.5 hours. All Plaintiff had to do to win it is point out that (a) Plaintiff served the RFAs, on Defendant (it did); (b) Defendant is required by California law to provide verified responses (it is); and (c) Defendant never provided a verification (it never did). The Court finds that reasonably should have taken 1.0 hour total to draft and argue. As Defendant's opposing Declaration is nonsense and not credible at all, the Court is not going to award Plaintiff any time for reviewing or replying to that. But the Court will award Plaintiff as a reasonable cost for bringing this motion the $60.00 filing fee.

Hence, for a monetary sanction, the Court awards Plaintiff a **total of $610.00**, which equals reasonable attorneys' fees of $550.00 (= 1.0 hours x $550.00 per hour) plus reasonable costs of $60.00 for *this* Motion. The Court further Orders that Defendant and Defendant's attorney Claudia Lozano are jointly and severally responsible for paying Plaintiff this monetary sanction of $610.00 within 30 days from today. [8]

[8] This monetary sanction of $610.00 that the Court now awards for this Motion to Compel Plaintiff to Provide a Verified Response to the RFAs is *separate and distinct from* any other monetary sanctions that the Court awards against Defendant and attorney Lozano in other Orders for other discovery motions. Simply put, Defendant and attorney Lozano must pay them all.

Conclusion and Order

Plaintiff's Motion is **GRANTED.** Specifically the Court **ORDERS** that:

1. The truth of all specified facts in the Requests for Admission, Nos. 1-24, Set One, served on Defendant Estate of Patricia Basquez on April 24, 2025, is deemed admitted by Defendant Estate of Patricia Basquez; and

2. Within 30 days from today, Defendant Estate of Patricia Basquez and Defendant's attorney Claudia Lozano will pay Plaintiff Juana Garcia Casas a monetary sanction of $610.00 total for Plaintiff's reasonable attorneys' fees and costs for this Motion.

Moreover, Defendant Estate of Patricia Basquez and Defendant's attorney Claudia Lozano are put on **NOTICE** that failure to comply with this Order within 30 days from today may result in further escalating monetary sanctions against them, plus nonmonetary sanctions including issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: June 3, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Beverly Ann Land v. Ford Motor Company, et al.*

Case No.: 25CV461206

See Order above. (As the moving party has notified the Court that it withdraws this motion, this motion is hereby OFF CALENDAR).

Line 8

Case Name: *Shashank Singh v. Hyundai Motor America, et al.*

Case No.: 25CV461390

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Genesis Motor America ("GMA") moves under the Federal Arbitration Action, 9 U.S.C. §§ 1-16, and California Code of Civil Procedure Section 1281 *et seq*. to compel arbitration of the claims of Plaintiff Shashank Singh ("Plaintiff") under their arbitration agreement and to stay this civil action pending the completion of this arbitration. Notice of Motion (the "Motion") at 1:4-9 (filed: Oct. 1, 2025).

The Motion came on for hearing on June 3, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

In this Song-Beverly Warranty Act case, GMA moves to compel arbitration based on two agreements with Plaintiff Singh: (1) the 2023 Owners Handbook & Warranty Information; and (2) a Bluelink Connected Services Agreement ("CSA").

As an initial manner, GMA's request for judicial notice of the complaint in this matter is granted. (Evid. Code, § 452, subd. (d).)

After carefully reviewing the language of these agreements, the circumstances of their alleged execution, and the claims of this case, for reasons the Court will now explain in detail, the Court finds and rules that the Motion is Denied.

1. Analysis of the 2023 Owners Handbook & Warranty Information for the Motion to Compel Arbitration.

The vehicle warranty upon which Singh brings this action is one of a series of warranties contained in a 48-page document titled "2023 Owner's Handbook and Warranty Information" ("Owners Handbook"). The arbitration provision appears on pages 12-14 of the Owner's Handbook and states, in relevant part, that the parties "each agree that any claim or disputes between us (including between you and any of our affiliated companies) related or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, and any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty . . . shall be resolved by binding arbitration at either your or our election even if the claim is initially filed in a court of law . . . ." (Declaration of Simran Virdi at p. 12.) It goes on for another page and a half, toward the end of which it states: "This agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. § 1-16." (*Id.* at p. 14.)

But the Owner's Handbook is not signed and there is no evidence that Singh was made aware of the text of the warranties in this document or the arbitration provision contained therein before he purchased his 2023 GMA GV70 vehicle from the dealer.

Under the Federal Arbitration Act ("FAA"), the Court's role is limited to determining "(1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute as issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

A. There is no mutual assent.

Here, there is no indication that Singh signed the Owner's Handbook or knew of its provisions at the time of sale. Therefore, there was no mutual assent supporting a valid agreement. Under certain circumstances, including those involving an unsigned *handbook*, a contract may be void if "a party, before making the agreement, lacks reasonable opportunity to learn its terms." (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 790 [addressing arbitration provision contained in an employee handbook] [citing *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394, 421].) As noted in *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279 (*Norcia*), another case involving an unsigned brochure (entitled "Product Safety & Warranty Information"): "Even if there is an applicable exception to the general rule that silence does not constitute acceptance, courts have rejected the argument that an offeree's silence constitutes consent to a contract when the offeree reasonably did not know that an offer had been made." (*Norcia*, 845 F.3d at p. 1285 [applying "basic principles of California contract law"].)

Recently, the Second District Court of Appeal in *Kostandian v. American Honda Motor Co., Inc.*, 2026 Cal.App. LEXIS 332 (certified for Publication on May 27, 2026), considered whether a valid agreement to arbitrate existed under a warranty booklet. *Kostandian* found that a valid agreement to arbitration did exist because the lease agreement there included a final inspection at delivery sheet that the respondent signed and initialed confirming his receipt of the owner's manual and warranty information. (*Id.* at *16.) But the facts here are distinguishable from *Kostandian* because here there is no evidence whatever that the warranty was presented in any manner to Singh. And Singh did not sign any documents confirming his receipt of the Owner's Handbook. Thus, there is no evidence of assent by Singh to the arbitration provisions here.

Importantly, it is GMA's burden to prove the existence of an arbitration agreement by "attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." That is absent here. So in the absence of any document bearing Singh's signature as acknowledgment or receipt of the warranty, GMA has failed to meet its burden.

Hence here, unlike in *Kostandian*, there are no facts supporting an outward manifestation of assent. "California law is clear—'an offeree, regardless of apparent manifestation of his consent is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious.'" (*Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 862 [internal citations omitted].)

b. Equitable estoppel does not bar Plaintiff from contesting this Motion to compel arbitration.

GMA argues that notwithstanding Singh's lack of assent and lack of knowledge regarding the arbitration provisions, Singh is now barred by equitable estoppel from challenging these provisions in the vehicle warranty because he has affirmatively asserted the warranty by seeking repairs from GMA and bringing this Song-Beverly Action.

A nonsignatory to a contract is generally " 'estopped from avoiding arbitration if [he] knowingly seeks the benefits of the contract containing the arbitration clause.' [Citation.] Equitable estoppel, thus, 'precludes a party from claiming the benefits of a contract while simultaneously attempting to avoid the burdens that contract imposes.'" (*Philadelphia Indemnity Insurance Co. v. SMG Holdings, Inc.* (2019) 44 Cal.App.5th 834, 841 [citations omitted].) But warranties like that found in the Owner's Handbook are "governed by a different set of rules" in California: "A seller is bound by any express warranties given to the buyer, including statements in written warranty agreements, advertisements, oral representations, or presentations of samples or models. [Citations.] Language in a written warranty agreement is 'contractual' in the sense that it creates binding, legal obligations on the seller [citation], but a warranty does not impose binding obligations on the buyer. Rather, warranty law 'focuses on the seller's behavior and obligation—his or her affirmations, promises, and descriptions of the goods—all of which help define what the seller in essence agreed to sell.' [Citations.] A buyer may have to fulfill certain statutory conditions to obtain the benefit of a warranty. See, e.g., Cal. Civ. Code[,] § 1793.02(c) (stating that '[i]f the buyer returns the [assistive device for an individual with a disability] within the period specified in the written warranty,' the seller must adjust or replace the device (emphasis added)). And a warranty generally does not impose any independent obligation on the buyer outside of the context of enforcing the seller's promises." (*Norcia*, *supra*, 845 F.3d at p. 1288.)

While *Norcia* was not an equitable estoppel case, because the plaintiff there did not attempt to enforce the warranty, its reasoning is nonetheless persuasive here. A warranty is an atypical contract. It is essentially one-sided, even though it is offered only after a buyer has agreed to pay for something pursuant to a sales contract. And it imposes obligations on a seller (or, in this case, on a manufacturer who passes the car into the stream of commerce through an authorized dealer who is the actual "seller"), but no independent, free-standing obligations on a buyer. It is unreasonable to expect a car buyer to know or anticipate that the buyer is necessarily agreeing to arbitrate all claims against that manufacturer merely by receiving a pre-printed warranty in an owner's handbook.

The proposition that a manufacturer can compel arbitration in virtually every Song-Beverly case simply by inserting language into an owner's handbook—without ever calling the buyer's attention to that language—runs counter to the reasoning of *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122. In that case, our Supreme Court concluded that a manufacturer could *not* enforce an arbitration provision in a sales contract to which its authorized dealer and a car buyer both affirmatively assented (but to which the manufacturer itself was not a party). (*Id.* at p. 1126.) Allowing a car manufacturer to perform an end-run around that decision simply by inserting an undisclosed and unsigned arbitration provision into an owner's handbook containing warranty terms would be an inequitable result. (*UFCW & Employers Benefit Trust v. Sutter Health* (2015) 241 Cal.App.4th 909, 929 [" 'The linchpin for equitable estoppel is . . . fairness.' "].) In contrast to other reported California decisions in which the equitable estoppel has been applied, the present case "does not present the unfairness that equitable estoppel is designed to avoid." (*Id.* at p. 931.).

Accordingly, GMA's equitable estoppel argument fails.

2. Analysis of the Bluelink CSA for the Motion to Compel Arbitration

As for the Bluelink Connected Services Agreement (the "CSA"), the Court notes that in contrast to the vehicle warranty, GMA does contend that Singh "signed" the agreement including its arbitration provision, when he electronically clicked a box on a dealer-owned device, such as a tablet, acknowledging that he had read and agreed to the Blue Link Terms & Conditions. (Declaration of Vijay Rao ["Rao Decl."] at ¶¶ 18, 19, Ex. A.)

To be sure, the arbitration provision in the CSA is broad:

> (a) Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, Connected Services Systems, Service Plans, *the Vehicle*, use of the sites or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law . . . The agreement to arbitrate otherwise includes, but is not limited to:
>
> Claims based on contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory; claims that arose before this or any prior Agreement (including, but not limited to, claims relating to advertising) . . .

(Rao Decl., Ex. B at ¶ 14.)

As explained in the Declaration of Vijay Rao, "GMA Connected Services refers to an optional Connected Services system that includes various functions and features such as remote start with climate control, remote door lock and unlock, remote car finder, on-demand diagnostics and alerts, enhanced roadside assistance, and automatic emergency assistance." (Rao Decl. at ¶ 5.) But based on the Court's careful review of the Complaint, *none* of these services are a part of the present Song-Beverly action. Instead, Singh has sued for "wind noise coming from the driver's side rear door, a popping noise while in reverse, tailgate misalignment, and other serious nonconformities to warranty." (Complaint at ¶ 13.) Under no stretch of the imagination are these complained-of defects in the car a part of the "connected services" provided by the Bluelink technology.

As a result, the court finds that the arbitration provision in the CSA does not apply to the present action. Although the language of the CSA arbitration provision is broad and contains the words "the Vehicle" and "warranty" in the above quoted language, the Court finds and rules that reading this agreement governing "connected services" to be broad enough to govern *any and all disputes relating to the vehicle as a whole* would be illogical and unwarranted. It is not a reasonable interpretation of the CSA provision, when read as a whole, and the Court rejects it. So the Court DENIES the Motion to compel arbitration based on the arbitration provision of the CSA.[9]

Conclusion and Order

Accordingly, the GMA's Motion to compel arbitration is **DENIED** in all respects.

SO ORDERED.

Date: June 3, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

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[9] Moreover, as the Court has ruled above that (1) as the vehicle warranty does not create an agreement to arbitrate between these parties here and (2) the scope of arbitration clause of the CSA does not cover Plaintiff's claims here, the Court need not address the parties' additional arguments that these arbitration agreements are unconscionable—because the Court has ruled that there are *no* arbitration agreements over Plaintiff's claims to be enforced here.

Line 9

Line 10

Line 11

Line 12

Line 13

Line 14

Line 15